

HOUSE No. 5271

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, March 25, 2026.

The committee on Consumer Protection and Professional Licensure, to whom was referred the petition (accompanied by bill, House, No. 330) of Daniel Cahill relative to the sale and purchase of adult-use products, reports recommending that the accompanying bill (House, No. 5271) ought to pass.

For the committee,

TACKEY CHAN.

HOUSE No. 5271

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to clarify the minimum age for the sale of adult-use products or services.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to ensure statewide uniformity in the regulation of legal age requirements for the purchase of goods and services and participation in regulated activities, thereby preventing a patchwork of local regulations that creates economic instability and consumer confusion, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 93 of the General Laws, as appearing in the 2024 Official Edition,
2 is hereby amended by adding the following new section:-

3 Section 115. (a) For the purposes of this section, the following words shall have the
4 following meanings:

5 “Local authority”, any city, town, municipality, or political subdivision of the
6 commonwealth, including any board of health, licensing commission, or legislative body thereof.

7 “Product or service”, any legal commodity, good, or professional service, including but
8 not limited to tobacco products, nicotine delivery systems, alcoholic beverages, or adult-use

9 services where the commonwealth has imposed minimum legal age requirement for purchase,
10 use or sale.

11 (b) Notwithstanding any general or special law to the contrary, including the Home Rule
12 Amendment, any statute enacted by the General Court that establishes a minimum age for the
13 purchase of a product or service, or for participation in an activity, shall supersede and preempt
14 any rule, regulation, ordinance, or by-law of a local authority that implements a generational ban
15 or birth-date-based restriction that prohibits the sale of products or services to persons based on a
16 specific birth year or date.

17 SECTION 2. Any local ordinance or regulation existing at the time of the passage of this
18 act that conflicts with the provisions of section 1 is hereby declared null and void. No local city,
19 town, municipality, or political subdivision of the commonwealth, including any board of health,
20 licensing commission, or legislative body thereof shall hereafter be authorized to enact or
21 enforce any age or year-based measure that differs from the minimum age-based standards
22 established by the commonwealth.

23 SECTION 3. This act shall take effect upon its passage.